

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
BARBARA TAYLOR,

Plaintiff,

**SUMMONS TO THE
COMPLAINT**

-against-

THE CITY OF NEW YORK; P.O. JOAN FERREIRA, Shield
7431; and P.O. JOHN/JANE DOES # 1-5 the individual
defendant(s) sued individually and in their official capacities,

Index:

Basis of Venue: occurrence of
incident – 50 East 102nd Street, New
York, New York 10029

Defendants.
----- X

To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

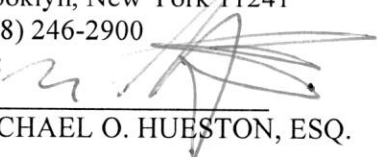
MICHAEL O. HUESTON, ESQ.

Attorney for Plaintiff

16 Court Street, Suite 3301

Brooklyn, New York 11241

(718) 246-2900

By: 

MICHAEL O. HUESTON, ESQ.

Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007; and P.O. JOAN FERREIRA, Shield # 7431; and P.O. JOHN/JANE DOES # 1-5, PSA 5, 221 E. 123rd Street (between 2nd Ave and 3rd Ave) NY, NY, 10029

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COUNTY OF NEW YORK

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Plaintiff, **COMPLAINT**

-against-

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7431; and P.O. JOHN/JANE DOES # 1-5 the individual
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York, New York 10029

-----X **Jury Trial Demanded**

Plaintiff Barbara Taylor, by and through her counsel, Michael Hueston, Esq.,
upon information and belief, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of plaintiff's rights secured by 42 U.S.C. § 1983; and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Plaintiff's claims arise from an incident that arose on or about April 17, 2014. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things: unlawful search and seizure; false arrest; unreasonable force; failure to intervene; conspiracy; and implementation and continuation of an unlawful municipal policy, practice. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Venue is proper in the Supreme Court of the State New York, New York County, because the acts in question occurred in the State of New York, New York County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, New York County; and jurisdiction is proper because the Supreme Court of the State New York, New York County has jurisdiction over plaintiff's federal causes of action pursuant to 42 U.S.C. § 1983.

PARTIES

3. Plaintiff Barbara Taylor is a resident of the State of New York, living at 50 East 102nd Street, New York, New York 10029.

4. At all times herein, defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

5. At all times relevant, defendant City of New York maintained a police department known as the NYPD, which employed the individual defendants.

6. At all times alleged herein, defendants P.O. Joan Ferreira, Shield # 7431, and Police Officers John/Jane Does # 1-5 were employed as police officers with Housing Bureau PSA 5, located in New York County, New York, or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

7. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

The Incident

8. On April 17, 2014, at and in the vicinity of 50 East 102nd Street, New York, New York, several police officers operating from the PSA 5 Precinct located in New York County, New York, including upon information and belief, the individual defendants P.O. Joan Ferreira, Shield # 7431, and Police Officers John/Jane Does # 1-5 (“the police”), at times acting in concert and at times acting independently, committed the following illegal acts against plaintiff.

9. On April 17, 2014 at approximately 6:00 a.m., at and in the vicinity of 50 East 102nd Street, New York, New York, the police without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff (or any third person) had committed a crime unlawfully arrested plaintiff.

10. The police entered plaintiff’s apartment at 50 East 102nd Street, New York, New York.

11. Plaintiff lives alone.

12. Plaintiff heard a banging on her front door.

13. The police rushed into the apartment with firearms drawn.

14. The police pointed firearms at plaintiff.

15. The police handcuffed plaintiff.

16. The police repeatedly belittled plaintiff when she asked what was going on and why she was being arrested.

16. The police repeatedly belittled plaintiff when she asked what was going on and why she was being arrested.

17. The police ransacked plaintiff's apartment damaging her property.

18. If the police had a search warrant, it was issued upon the basis of extremely unreliable information, the unreliability of which was withheld from the issuing magistrate.

19. If the police had a search warrant, they obtained it by failing to properly supervise and verify the reliability of any informant before obtaining the warrant and withheld this fact from the issuing magistrate.

20. If the police had a search warrant, they went beyond the scope of the warrant, including going beyond a safety search and searching plaintiff's property.

21. Once the police entered plaintiff's apartment, plaintiff was not free to disregard the defendants' questions, walk away or leave the scene.

22. The police found no basis to arrest to plaintiff.

23. The police removed plaintiff to a police vehicle.

24. The police transported plaintiff to PSA 5 Precinct for arrest processing.

25. The police issued plaintiff with a desk appearance ticket and then released her.

26. In order to cover up their illegal actions, the police, pursuant to a conspiracy, falsely and maliciously told the New York County District Attorney's Office that

plaintiff had committed various crimes, including criminal use of drug paraphernalia and unlawful possession of marijuana.

27. The police made these false allegations, despite the fact that they had no evidence that plaintiff had committed a crime, to cover up their misconduct, to meet productivity goals and quotas, and to justify overtime expenditures.

28. After having to appear in criminal court the case against plaintiff was adjourned in contemplation of dismissal and dismissed.

29. Plaintiff was shocked, humiliated and embarrassed by the experience.

General Allegations

30. Plaintiff did not resist arrest at any time during the above-described incidents.

31. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

32. The individual defendants did not observe plaintiff violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

33. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in

abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

34. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

35. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

36. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

37. Defendants unlawfully searched plaintiff and the premises without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

38. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SECOND CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

39. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

40. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

41. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

THIRD CLAIM
(UNREASONABLE FORCE)

42. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

43. The individual defendants' use of force upon plaintiff was objectively unreasonable.

44. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff.

45. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

46. Accordingly, the defendants are liable to plaintiff for using unreasonable force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM
(FAILURE TO INTERVENE)

47. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

48. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

49. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FIFTH CLAIM
(CONSPIRACY)

50. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

51. Defendants are liable to plaintiff because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiff under 42 U.S.C. § 1983.

SIXTH CLAIM
(MONELL CLAIM)

52. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

53. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

54. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) wrongfully arresting innocent persons in order to meet productivity goals; (2) using unreasonable force on individuals; and (3) unlawfully obtaining and executing search warrants.

55. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

56. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

57. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

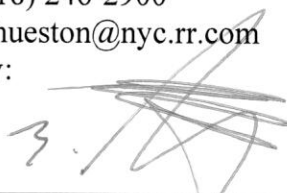
58. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants; and demands judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
March 24, 2016

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900
mhueston@nyc.rr.com

By:

A handwritten signature in dark ink, appearing to be "M. O. Hueston", written over a horizontal line.

MICHAEL O. HUESTON, ESQ.

VERIFICATION

I, Barbara Taylor, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.

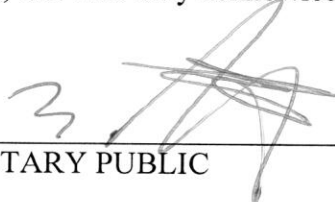

Barbara Taylor

STATE OF NEW YORK)

: ss:

COUNTY OF KINGS)

On the 25 day of March, 2016, before me personally came and appeared BARBARA TAYLOR to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.



NOTARY PUBLIC

MICHAEL HUESTON
NOTARY PUBLIC, State of New York
No. 02HUS073803
Qualified in Kings County
Commission Expires April 22, 2018

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-against-

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SUMMONS AND COMPLAINT

MICHAEL HUESTON, ESQ.
Attorney for Plaintiff
16 Court St., Suite 3301
Brooklyn, New York 11241
(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 3/24/2016 Signature: _____

Michael Hueston, Esq.

*Due and timely, service is hereby
admitted.*

Brooklyn, New York....., 2016

....., Esq.

Attorney for.....